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To be argued by:
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SUPREME COURT OF THE STATE OF NEW YORK
APPELLATE DIVISION
FOURTH JUDICIAL DEPARTMENT

NEW YORK STATE SUPREME COURT
APPELLATE DIVISION - THIRD DEPARTMENT

THE PEOPLE OF THE STATE OF NEW YORK,
THE PEOPLE OF THE STATE OF NEW YORK,
Respondent,

Respondent,

-against-

- against -

ALEX Q. DOE,
Defendant-Appellant.

NAUMAN HUSSAIN,

A.D. No. CR-23-1493

Defendant-Appellant.

Ind. No. 2025-0000

APPEAL FROM A JUDGMENT OF THE SUPREME COURT, MONROE COUNTY (JANE EXAMPLE, J.), RENDERED MARCH 14, 2026

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October 1, 2026

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STATEMENT OF QUESTIONS INVOLVED

1. Did the trial court err in denying suppression of the handgun recovered from defendant's car, where the police had no founded suspicion of criminality to justify the stop and the frisk that followed?

The court below answered this question in the negative.

2. Was defendant denied the effective assistance of counsel where trial counsel did not pursue a police report that the prosecution disclosed after the suppression hearing?

The court below did not reach this question.

PRELIMINARY STATEMENT

By right, appellant, Nauman Hussain, appeals from a judgment of the Supreme Court, Schoharie County (Lynch, J.), rendered on May 31, 2023, convicting him, after a jury verdict, of twenty counts of manslaughter in the second degree and sentencing him to an indeterminate term of five to fifteen years in prison. A stay had been sought and denied on August 25, 2023 (Egan, J.), and appellant is incarcerated pursuant to the judgment herein.

PRELIMINARY STATEMENT

By right, appellant Alex Q. Doe appeals from a judgment of the Supreme Court, Monroe County (Example, J.), rendered March 14, 2026, convicting him, upon his plea of guilty, of one count of criminal possession of a weapon in the third degree, and sentencing him to a determinate term of two years in prison, followed by five years of post-release supervision. The plea reserved appellant's right to challenge the denial of his suppression motion. The appeal presents two questions, both arising from the same traffic stop: whether the officer had a lawful basis for the stop and the frisk that followed, and whether the People's late disclosure of a dispatch log was handled in a way that denied appellant a fair hearing.

STATEMENT OF FACTS

A. The Charges

According to the accusatory instrument, appellant possessed a loaded handgun in a motor vehicle on June 2, 2025. The People's case rested on one witness, the arresting officer, a New York State Trooper.

B. The Traffic Stop

At about 9:40 p.m. on June 2, 2025, Officer Samuel Example stopped appellant's car on Lake Avenue for a defective tail lamp. The officer testified that the lamp was dark when he first saw the car. He did not record the stop on video, and the lamp was not repaired or photographed. (A 41-42.)

The officer asked appellant for his license and registration, and then asked him to step out of the car. The officer testified that appellant appeared nervous, that his hands were "moving around," and that he had been stopped in the same area before. (A 44-46.) The officer did not testify to any observation of a weapon, a furtive movement toward the interior of the car, or a report of criminal activity. (A 47.)

The officer testified that he had "a feeling" about the vehicle, and that the feeling grew stronger when the driver reached toward the dashboard. He did not describe what the driver did with his hands, and he did not say whether the reach was toward the glove compartment or the door. (A 48.)

After appellant stepped out, the officer patted him down and then searched the passenger compartment. He found a loaded handgun under the driver's seat. (A 47.)

The People elicited testimony and admitted exhibits to prove these particulars.

An example shows the need for the specific charge requested by appellant and demonstrates the lack of confidence in the jury's verdict.

Lisinicchia had a commercial driver's license, but he did not have a passenger endorsement and police told appellant about the passenger endorsement requirement (A 218-19, 223-24). Police informed appellant that Lisinicchia could not operate the limousine until he receives a passenger endorsement and issued a violation specifying that Lisinicchia was out of service until he had the proper endorsement (A 227, 229). Lisinicchia had been disqualified from the NYS DMV Article 19A driver registration program and a violation was issued for operating a 19A disqualified driver (A 243).

Along the limousine's route, a witness observed a very strong, burning brake smell (A 250-52). Another witness testified that the limousine bypassed two "no truck" going down the hill signs (A 256-57). The People's expert

"defendant was told by third parties that he had to comply with DOT regulations to maintain the vehicle in sufficient repair to operate as a commercial motor vehicle;" "Defendant was reckless when he hired a driver who did not have authority to drive a 16 passenger vehicle/limousine and who lacked a P endorsement;" "Lisinicchia had not been drug tested and/or who had been placed out of service by the New York State Police and/or, New York State Department of Transportation;" and "Defendant was told Scott T. Lisinicchia could not drive the 2001 limousine until Scott T. Lisinicchia obtained a P endorsement" (A 14-15).

49-51.) The officer arrested appellant for criminal possession of the weapon. (A
52.)

C. The Suppression Hearing and the Late Disclosure

At the hearing the People called only the officer. Defense counsel cross-examined him about the tail lamp and the frisk. The court asked no questions. The People did not disclose a dispatch log from the stop until after the hearing closed. (A 58-59.) The log shows a call was made to the officer, [illegible] minutes before the stop, reporting a "suspicious vehicle" at a different address. (A 62.) Trial counsel did not ask the court to reopen the hearing, and did not seek an adjournment to investigate the call. (A 66-67.)

The court denied the motion in a written decision that did not mention the dispatch log. Appellant then pleaded guilty, reserving his right to appeal from the suppression ruling.

ARGUMENT

POINT I

THE STOP AND THE FRISK WERE NOT SUPPORTED BY FOUNDED SUSPICION

The People [illegible] The officer's own account does not meet it. A stop for a defective equipment violation requires a traffic infraction, and the officer's testimony about the lamp was uncorroborated and unrecorded. The court credited it without comment, which is not enough to carry the People's burden at a suppression hearing.

to effectively confer with counsel and to make an intelligent decision ignores reality and casts aside all notions of fairness.

For example, the Court of Appeals, in *People v Schultz*, addressed a similar scenario where the trial court promised a specific sentence at the time of the plea, but then determined that promise could not be honored because a longer sentence was appropriate (*see People v Schultz*, 73 NY2d 757, 758 [1988]). There, the defendants had a chance to withdraw their pleas and were granted more than a week's adjournment so that they could consider their options" (*see Schultz*, 73 NY2d at 758). The Court held that the trial court did not abuse its discretion, in part, because the "defendants were afforded ample opportunity to withdraw their pleas" (*see Schultz*, 73 NY2d at 758).

In contradistinction, appellant was given only 20 minutes to confer with counsel. Supreme Court even directed a court officer to interrupt appellant's consultation with his attorneys to order them to reappear and provide a decision. We do not mean to suggest any particular amount of time is required, but the amount must be reasonable (*see People v Bostic*, 34 AD2d 597, 597 [3d Dept 1970][holding that a defendant was not denied the right to counsel where he was given "additional time to consult with counsel" before the hearing and where the plea of guilty occurred the day following the hearing "after 'thorough' discussion with counsel"]). A determination of what

A. The Officer Had No Basis to Extend the Stop

Even if the stop was justified at its inception, the officer had to limit his inquiry to the reason for it. Once he had checked the license and registration, he had no further lawful purpose unless he had a founded suspicion that criminal activity was afoot. *Terry v. Ohio*, 392 U.S. 1, 21 (1968) requires "specific and articulable facts." The officer identified no such facts to support his suspicion, and an unspecified prior stop in the area adds nothing particular to this defendant.

The inquiry the officer made went beyond the traffic infraction. He asked the appellant to step out of the car while the license check was still pending. That step was a seizure in its own right, and it was not supported by any articulable fact. The People cannot justify it by pointing to what the officer found afterward. Under the framework of *People v. De Bour*, 40 N.Y.2d 210 (1976), a request to exit the vehicle must rest on a reasonable suspicion of criminality, and the record shows none.

B. The Frisk Exceeded Any Permissible Scope

Even if the officer could lawfully order appellant out of the car, the frisk was not justified. A protective pat-down requires an articulable belief that the person is armed and dangerous. *Terry*, 392 U.S. at 27. The officer testified only that appellant's hands were "moving around." He did not testify that he saw a bulge, a weapon, or any threatening gesture. (A46.) The search of the passenger compartment followed from the unlawful frisk and cannot be sustained as a search incident to arrest, because the arrest itself was the product of the unlawful search.

The handgun must be suppressed, and the judgment must be reversed.

charge merely tracked the standardized charge on this issue. Supreme Court did not heed the drafter's caution of the need to expand the charge to meet the facts of the case nor was appellant's specific request in that regard given any credence.

The danger of a charge that is not tailored to the specific facts of a case is that a juror might interpret it to authorize a guilty verdict even if the People did not establish the defendant's guilt beyond a reasonable doubt. The lack of a specific charge also threatens juror unanimity, raising a concern that the jury could find the defendant guilty without unanimous agreement on the way the defendant committed the crime.

That danger is particularly acute where, as here, the People broadly assign criminal liability based on many acts and omissions in their bill of particulars and proceed to elicit testimony of such acts, which had nothing to do with the actual cause of the crash – catastrophic brake failure. For example, the People particularized, in part, that appellant was reckless in that the 2001 Ford Excursion Stretch Limousine was in poor condition; "[t]hird parties had told the defendant the repairs he made were temporary and/or inadequate and the limousine required further repairs;" "individuals over a period of time refused to drive the 2001 Ford Excursion Stretch Limousine because of its condition;" the "defendant repeatedly failed to properly maintain the vehicle;" the "defendant received multiple notices of violations from the NYS Department of Transportation and NYS Police and continued to cause passengers to be transported;" the "defendant attempted to sell the limousine before the crash;" the

difficult choice turned into an impossible one when Supreme Court noted appellant must make that decision in less than 20 minutes (8-1-23 at 28-30).

POINT II

COUNSEL WAS INEFFECTIVE FOR FAILING TO PURSUE THE DISPATCH CALL

Following the short break in the proceedings, Supreme Court instructed an officer to interrupt appellant's meeting with his attorneys and turned to appellant's counsel (A 61-62). Appellant's counsel requested more time to make a decision; Supreme Court cut off this request, and demanded a decision (A 62). At that point, appellant sought to withdraw his plea (A 62). The refusal to afford appellant more time to make a crucial and significant decision was error.

A. Supreme Court's Failure to Adjourn Compels Reversal

The decision to grant an adjournment is a matter of discretion for the trial court and "will not be disturbed absent an abuse of that discretion" (*see People v Booker*, 141 AD3d 834, 835 [3d Dept 2016][internal quotations omitted]; *People v Singleton*, 41 NY2d 402, 405 [1977]). "But in particular situations, when the protection of fundamental rights has been involved in requests for adjournments, that discretionary power has been more narrowly construed" (*see People v Spears*, 64 NY2d 698, 700 [1984]).

B. The Omission Prejudiced Appellant

Two fundamental rights intersect here. First, "[t]he right to counsel . . . is inherent in the concept of a fair trial" (*see People v Cooper*, 307 NY 253, 259 [1954]). That right is protected "under both the Federal and State

Strickland v. Washington, 466 U.S. 668, 687 (1984), a defendant must show that counsel's performance fell below an objective standard of reasonableness, and that there is a reasonable probability that the result would have been different but for the error.

A. Counsel Did Not Seek to Reopen the Hearing

The dispatch log showed a call about a "suspicious vehicle" made by the same officer minutes before the stop. That entry bore directly on whether the officer had an independent reason to suspect appellant, and on whether his testimony was accurate. The defense did not request an adjournment to investigate the call, and did not cross-examine the officer about the entry. (A 66-67.)

There was no strategic reason for these omissions. The entry was in the People's own disclosure, and counsel had no reason to expect it would not be used. A reasonable attorney who received the log would have sought to reopen the hearing, or would have explained on the record why it could not be used. Counsel did neither.

The suppression ruling turned on whether the officer's account was credible and whether he had a reason to act before the stop. The call bore on both. There is a reasonable probability that, had the log been put to the officer, the court would

have found the stop or the frisk unjustified. The handgun would then have been

suppressed, and the plea that followed from its admission would not have been

entered on these terms.

POINT III

THE LATE DISCLOSURE VIOLATED BRADY, AND THE INTEREST OF JUSTICE WARRANTS RELIEF

A. The Dispatch Log Was Favorable and Material

The People must disclose evidence favorable to the defense that is material to guilt or punishment. *Brady v. Maryland*, 373 U.S. 83, 87 (1963). The log was favorable because it called the officer's reason for the stop into question. It was material because the suppression ruling depended on that reason. Disclosure after the hearing closed came too late to be used at the hearing, which is a violation of the People's continuing duty.

B. In the Alternative, the Interest of Justice Requires a Reduction

Even if the suppression ruling is affirmed, this Court may reverse or modify a judgment in the interest of justice. CPL 470.15 (6) (a). The record shows a contested stop, a single witness, an unrecorded traffic infraction, and a late disclosure that the defense never had a chance to test. Those features warrant relief as a matter of discretion, and the sentence should be reduced.

Whether an intervening cause exists, therefore, is not something a trial court should reject as a matter of law, except under the most apparent circumstances. Instead, the courts must entrust the issue to a jury to resolve. In making that determination, the courts must view the evidence in the light most favorable to the defendant.

Despite appellant's request, Supreme Court refused to charge the jury regarding an intervening act. The issue is not whether, on this record, the People disproved the existence of an intervening act. Rather, the issue is whether Supreme Court, viewing the evidence in the light most favorable to the defense, should have charged the jury on intervening cause. Under *Stewart* and *Duffy*, appellant was entitled to that charge. The failure to charge the jury accordingly, shifted the determination of a factual issue to the prerogative of the trial court, thereby depriving appellant of a fair trial.

CONCLUSION

CONCLUSION

FOR THE REASONS STATED ABOVE, APPELLANT'S JUDGMENT SHOULD BE REVERSED. ALTERNATIVELY, APPELLANT'S SENTENCE SHOULD BE REDUCED.

For these reasons, the judgment of conviction should be reversed and the handgun suppressed. In the alternative, the Court should reverse for a new suppression hearing or, in the interest of justice, reduce the sentence.

Respectfully submitted,

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October 1, 2026

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PRINTING SPECIFICATIONS STATEMENT

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